

10.07.2023

Clarifications - Use of BodyCam by ANPC

For the correct information of the public opinion, we emphasize that the National Authority for the Supervision of Personal Data Processing has no connection with the inspections carried out by the National Authority for Consumer Protection (ANPC) at the beginning of 2023, at nursing homes. During May and June 2023, following the receipt of complaints (public letter from a group of ANPC employees), the National Authority for the Supervision of Personal Data Processing conducted an investigation at the operator National Authority for Consumer Protection (ANPC), in which it was found that starting from May 2023, BodyCam devices were used without an express legal basis. ANPC declared that it began using BodyCam systems in May 2023. There is no express legal provision that allows ANPC to use portable Body Cam cameras with audio-video recording function in its activities, in relation to its specific legal responsibilities. ANPC was sanctioned with a warning for violating the provisions of Article 5 paragraph (1) letter a), in relation to Article 6 paragraph (1) of Regulation (EU) 2016/679 (absence of an express legal basis for large-scale processing of personal data). As such, it was found that the processing of personal data (name, surname, position/status, image, voice, behavior) through the portable audio-video surveillance system was carried out by ANPC without any legal obligation on its part as an operator. According to Article 5 paragraph (1) letter a) of the GDPR, the ANPC operator had the obligation to process data legally, fairly, and transparently concerning the data subject.

In addition to the warning sanction, on June 20, 2023, by decision, the National Authority for the Supervision of Personal Data Processing ordered the ANPC operator to cease any operation or set of operations for the processing of personal data carried out through portable Body Cam devices with audio-video recording function and to delete the personal data from the record system established as a result of the use of such devices starting from May 2023. We also specify that the National Authority for the Supervision of Personal Data Processing has conducted several investigations regarding the illegal use of portable Body Cam cameras at several public institutions: Local Police Constanta, Local Police Cluj, Local Police Sector 4. In all cases, it applied a warning and mandated the cessation of the use of these cameras since there was no express legal provision allowing these institutions to use them. The courts have upheld the decisions of ANSPDCP through final rulings.

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